

The declaration of Binh Bui is insufficient regarding service. If the client has been served by mail at the client's last known address the attorney must have confirmed the client's last known address within the past thirty (30) days.

Here, the motion was served by mail and in confirming the client's last known address in the past thirty (30) days Bui checked 3(b)(1)(d), which is confirming the address by other means. Specifically, the declaration states at 3(b)(1)(d), "We served the client via mail at his last known address, and the Proof of Service to that effect is being filed contemporaneously with these motion documents." (Bui Decl. 3(b)(1)(d).)

This is not confirmation that the client's last known address is current. It is a statement that service was completed at the client's last known address. Before the court can grant the motion, the client's last known address must be confirmed and the appropriate information contained in counsel's declaration.

25CV-05960

Gabriela Martinez-Landeros vs Gilberto Santos, et al.

Motion for Interlocutory Judgment of Partition by Sale; Order Authorizing Sale of Real Property; Waiver of Co-Owner Consent; & Related Relief

Plaintiff's motion for partition by sale is GRANTED.

The court finds: 1. Partition by sale pursuant to Code of Civil Procedure section 872.710 et seq. is appropriate; 2. Plaintiff Gabriela Martinez-Landeros and Defendant Gilberto Santos each hold a fifty percent (50%) undivided joint tenancy interest in the real property located at 128 Chardonnay Street, Los Banos, California 93635 (the "Property"); 3. The Property is a single-family residence and cannot be partitioned in kind without great prejudice to the parties; 4. The costs of partition are to be apportioned equally between the parties.

The Court will sign the order lodged on April 20, 2026, subject to the appointment of a referee pursuant to Code of Civil Procedure section 873.510. Plaintiff is to file a notice of proposed referee supported by proper declaration(s) within ten (10) days of this court's order.

26CV-02580

Gladys Madrigal Ordaz vs Gabriela Moreno Hernandez

Order to Show Cause Re: Restraining Order

Appearance required. Proof of timely personal service of the notice of hearing on Respondent was filed May 15, 2026. A response to the request for a civil harassment restraining order was filed May 21, 2026.
